

TRINITY ALPS FARMS, INC. v BARRETT FARMS, LLC, et al

24CF14779

**PLAINTIFF'S RENEWED MOTION TO DETERMINE
APPEARANCE OF BARRETT FARMS, LLC/PLAINTIFF'S
MOTION FOR TERMINATING SANCTIONS AS TO
DEFENDANTS DASHIEL MILLER AND BARRETT FARMS,
LLC**

This case involves a contract dispute involving an agreement to purchase two 40-ft freezer container units from Defendants by Plaintiff. Defendants are Barrett Farms LLC ("Barrett"), Wildseed LLC ("Wildseed"), Michael McClaren ("McClaren") and Dashiel Miller ("Miller.")

Now before the Court is Plaintiff's renewed motion to "determine appearance and request for entry of default" as to Barrett. Defendants have not filed an opposition.

I. Facts Relevant to the Motion To Determine Appearance

On September 30, 2024, Plaintiff filed its Complaint against Barrett and Does 1-10. On December 20, 2024, Plaintiff filed proof of service of the Complaint and summons on Barrett by personal service. At a Case Management Conference ("CMC") on January 8, 2025, Miller (who is not an attorney) appeared on behalf of Barrett. At that CMC, the Court noted that the Complaint had been properly served and that no answers had been filed. On that same date, Miller filed an Affidavit in response to the Complaint which was treated as an Answer by the clerk. The Answer does not reference Barrett or attempt to respond on behalf of Barrett.

On May 9, 2025, Plaintiff filed a First Amended Complaint ("FAC") which added Wildseed, McClaren and Miller as defendants. On August 19, 2025, McClaren and Wildseed filed an Answer to the FAC as well as a cross-complaint against Barrett and Miller.

On October 13, 2025, Plaintiff filed a Request for Entry of Default against Barrett which was denied by the Clerk on the grounds that Barrett had made a first appearance in the case. Barrett is an LLC and Miller is not a licensed attorney. On February 27, 2026, the Court heard Plaintiff's motion to determine appearance and enter default against Defendant Barrett and LLC. The Court denied the motion, giving LLC 30 days to obtain counsel and file responsive pleadings.

II. Legal Standard and Discussion

"[U]nder a longstanding common law rule of procedure, a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in proceedings before courts of record." (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145.) Miller filed a purported Answer on his own behalf but has no authority to file one on behalf of Barrett. Accordingly, Barrett has not yet entered an appearance in this matter.

Generally, a court may not strike the pleadings of a self-represented corporation without first giving them an opportunity to obtain counsel and cure the defect. (See *CLD Construction*, supra, 120 Cal.App.4th at pp. 1146–1147.) The Court gave Barrett thirty days from February 27, 2026, to obtain counsel and file a responsive pleading but it has not done so.

Accordingly, the Court finds Barrett was properly served on October 2, 2024, and has not entered an appearance in this matter.

Where a defendant has failed to appear and file an Answer within the specified period, the Court may enter default judgment. (Code Civil Procedure §585.) Accordingly, the motion to enter default judgment is **GRANTED**.

1. Facts Relevant to the Motion for Terminating Sanctions

On February 27, 2026, the Court granted Plaintiff's motion to compel responses to Form Interrogatories and Special Interrogatories and ordered Miller and Barrett to provide code-compliant responses within thirty (30) days. The Court also imposed monetary sanctions against Barrett and Miller. As of the date of the filing of the motion (June 4, 2026), neither Barrett nor Miller have responded as required by the Court's Order. (Declaration of Zachary R. Drivon ("Drivon Decl.") ¶ 3.)

On July 13, 2026, Plaintiff filed a Request for Entry of Default against Barrett and Miller.

2. Legal Standard and Discussion

California discovery law authorizes a range of penalties for conducting amounting the “misuse of the discovery process.” (Code Civ. Proc. §2023.030.) Misuses of the discovery process include “[u]sing a discovery method in a manner that does not comply with its specified procedures” (Code Civ. Proc. § 2023.010(b)); “[f]ailing to respond or to submit to an authorized method of discovery” (id., subd. (d)); “[m]aking an evasive response to discovery” (id., subd. (f)); and “[d]isobeying a court order to provide discovery” (id., subd. (g).)

In selecting the appropriate sanction, a trial court “should consider both the conduct being sanctioned and its effect on the party seeking discovery.” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992.) The Court should also attempt to tailor the sanction to the harm caused by the discovery abuse. (*Ibid.*)

“A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.)

The Court has already adjudicated that default should be entered against Barrett and default was entered as to Miller as well.. Accordingly, the **motion for terminating sanctions is moot and accordingly denied, but without prejudice to renew if for any reason the defaults are set aside.**

[Additionally, in the event either or both defaults are set aside for any reason, the Court notes the following:

The Court concludes that terminating sanctions are not appropriate currently. A terminating sanction “is a proper sanction to punish the failure to comply with a rule or an order only if the court’s authority cannot be vindicated through the imposition of a less severe alternative.” (*Rail Services of America v. State Comp. Ins. Fund* (2003) 110 Cal.App.4th 323, 331.) Further, “the discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (*Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1259.)

Here, defendants Barrett and Miller have failed to comply with a single court Order regarding discovery. There have not been multiple failures which would tend to show that the court's authority cannot be vindicated by alternative means. At the same time, the Court is cognizant of the fact that said defendants have been reluctant participants in these proceedings and have blatantly failed to comply with the Court's discovery Order.

Accordingly, the motion for terminating sanctions would be denied. However, due to defendants' failure to comply with the Court's discovery Order, it is appropriate to impose evidentiary sanctions precluding Barrett or Miller from presenting any evidence at any proceeding that involves matters that should have been provided in the required discovery responses. Determination of the scope of this evidentiary sanction will be determined by the Court at any future time that it becomes relevant.] The failure to do so may result in granting terminating sanctions in the future.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted proposed Order on the granted motion.

CHARTER-SMITH, et al v MALLERY, et al

24CV47281

PLAINTIFFS' MOTION TO REVOKE NON-MONETARY STATUS

This case involves a dispute over real property known as 1374 Hubbard Road, Sheep Ranch, CA 95246 ("Property.") Now before the Court is Plaintiffs' motion to revoke non-monetary status of Defendant Mid Valley Title and Escrow ("Mid Valley Title.")

I. Facts

Alison Charter-Smith and Anthony Jaehnichen (collectively "Plaintiffs") are husband and wife and have owned the Property since 2015. (Complaint ¶ 1.) On about January of 2018 Plaintiffs secured a Promissory Note in the amount of \$478,000.00 (the "Loan") from lender PENSCO Trust Company LLC, custodian FBO Terry M. Mallery IRA. (Complaint ¶ 2.) The monthly payment for this loan was \$3,883.75 and had a loan maturity date of February 1, 2021. (*Ibid.*) This Loan was arranged by Terry M. Mallery, a licensed real estate broker in the State of California ("Mallery.") (*Id.* ¶ 15.) Monterey Peninsula Capital Partners, Inc. ("Monterey") is the servicer on the loan, and the lender is Penso Trust Company FBO Terry M. Mallery. (MPA p. 2.) The non-judicial foreclosure trustee for the subject foreclosure is Mid Valley Title.

On August 27, 2019, Plaintiffs executed a First Modification to Promissory Note ("First Modification") and on May 4, 2020, they executed a Second Modification to Promissory Note ("Second Modification.") A Notice of Default for the Loan was recorded against the Property on or about July 5, 2023, listing a default of \$31,389.46 as of July 5, 2023 (the "Notice of Default"). (Complaint ¶ 20.) Thereafter, a Notice of Trustee's Sale was recorded on October 5, 2023.

On January 9, 2024, Mallery purchased the Property at public auction, and the deed was recorded on January 24, 2024. On or about February 13, 2024, Plaintiffs were notified that the Property had been purchased by Mallery and Richard Kostas, a manager at Monterey.